

24SMCV04673 24SMCV04673

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-07-14

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Case Number: 24SMCV04673 Hearing Date: July 14, 2026 Dept: M

CASE NAME: Goldshan, v. Mazda

Motor Corp., et al.

CASE NO.: 24SMCV04673

MOTION: Motion

for Trial Preference

HEARING DATE: 7/14/2026

Legal

Standard

A party who is 70 years of age or older, or who reach that age during pendency of the action, may be entitled to preference if they establish to the court's satisfaction that: 1) he has a "substantial interest in the action as a whole"; and 2) his health is "such that preference is necessary to prevent prejudicing the party's interest in the litigation." (CCP § 36(a), (c)(2).) In contrast to minor plaintiffs, trial priority is not mandatory and absolute merely because one of the parties is age 70. The court has discretion to determine the extent of that party's interest and find as a matter of fact the risk posed of that party's death or incapacity if trial is delayed. (CCP § 36(a).) However, if the factors are shown, the Court "shall" grant preference. A declaration supporting a motion for CCP section 36(a) preference "may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party." (CCP § 36.5.) Accordingly, an attorney's declaration can consist entirely of hearsay and conclusions. (Fox v.

Superior Court (2018) 21 Cal.App.5th 529, 534.)

A trial must be set within 120

days even if opposing parties have not completed discovery or pretrial preparations. (Swaithes v. Superior Court (1989) 212 Cal.App.3d 1082, 1086.) Mere inconvenience to the court or to other litigants is irrelevant. (Rice v. Superior Court (1982) 136 Cal.App.3d 81, 89-94; but see Polibrid Coatings, Inc. v. Superior Court (2003) 112 Cal.App.4th 920, 923-924 [when brought into case after over half the time to litigate has passed, party should be given “at least enough time” to “reasonably complete discovery and bring a summary judgment motion.”].) Thus, the Court generally focuses on the moving parties’ burden, rather than striking a balance between the conflicting interests of opposing litigants.

Moreover, the court has the general discretionary power to grant priority to any case upon a showing of good cause, i.e. “that the interests of justice will be served by granting this preference.” (CCP § 36(e).)

Analysis

Plaintiff Shokoh Golshan moves for an Order granting a trial preference pursuant to CCP section 36(a). Plaintiff requests that the trial in this matter be set within 120 days. The trial is currently set for January 11, 2027, approximately 181 days from this hearing. If preference is granted, the court must advance the trial to November 11, 2026, or earlier.

It is undisputed that Plaintiff is over the age of 70 and has a substantial interest in the action as the sole plaintiff. Plaintiff argues that the injuries she sustained from the subject accident poses a risk that she may be incapacitated if preference is not granted. Plaintiff cites her life-threatening orthopedic injuries, including multiple fractures throughout her body, a head injury, lacerations, collapsed lungs, and severe PTSD. (Ruga Decl., ¶ 3.) Plaintiff also suffers from preexisting medical conditions which compound the injuries from the incident, including high cholesterol, IBS, and other gastrointestinal issues. (Ruga Decl., ¶ 4.) Plaintiff remains treating with an orthopedic surgeon who has opined that she is a candidate for multiple orthopedic surgeries. (Ruga Decl., ¶ 3.) Plaintiff asserts that her advanced age, the severity of these injuries, major surgeries she still faces, and her serious

mental-health conditions heighten her mortality risk and threaten erosion of her memory and cognition.

Plaintiff fails to demonstrate that her health poses a substantial risk that her interest in this litigation will be prejudiced if preference is not granted. The cited injuries do not persuade the Court that Plaintiff will not be able to meaningfully participate in the trial, or enjoy the benefits from any settlement or judgment in this matter, if the trial is not advanced by two months. In opposition, Defendants present specific evidence that expert witnesses do not find any objective evidence of any neurological impairment. (Tramo Decl. ¶¶ 3-6; Swedo Decl., ¶ 5.) Notably, Plaintiff's own experts identify her head trauma as "mild," and that the majority of individuals who sustain mild head trauma fully recover within 6 months. (Swedo Decl., ¶¶ 6-7, Ex. A.)

Accordingly, the motion is
DENIED.